



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: PODS Case No. C-033121 regarding Police Officer Mahmut Halis, Tax No. 960633

Date: March 31, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Halis was discourteous and used offensive language towards an individual, and threatened to remove the individual to the hospital. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Police Officer Halis will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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Dr. MOHAMMAD KHALID
INTERIM CHAIR

July 29, 2025

Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Mahmut Halis (Tax Reg #960633, CCRB #202308784)

Commissioner Tisch:

A negotiated settlement of Training was agreed upon and signed by all parties on April 28, 2025. During a conference that took place on July 22, 2025, Assistant Deputy Commissioner - Trials Anne E. Stone endorsed the negotiated settlement.

On September 16, 2023, at approximately 10:17 pm, Police Officer Mahmut Halis and another officer responded to a call regarding a family dispute at an apartment in Queens, where [REDACTED] was caring for her elderly, disabled mother. A friend of Ms. [REDACTED], [REDACTED], was also present.

Upon arrival, Officer Halis observed that Ms. [REDACTED] had minor scratches on her face and arm. She reported to the officers that Mr. [REDACTED] had scratched her; in response, Mr. [REDACTED] alleged that Ms. [REDACTED] had been attacking her mother. Officer Halis gave Ms. [REDACTED] a Domestic Incident Report to complete, but she refused to do so.

Officer Halis continued to investigate the dispute and gathered information from the civilians. Approximately twelve minutes after responding to the apartment, Officer Halis told Mr. [REDACTED], "Obviously [she] is not right in the head," while Ms. [REDACTED] stood nearby. A few minutes later, Officer Halis told Ms. [REDACTED] that if she "keeps this up," he would take her to the hospital for a medical evaluation. He further told her, "Clearly there is something wrong with you." During the same exchange, Officer Halis informed Ms. [REDACTED] that her behavior was "not normal."

Officer Halis contacted Emergency Medical Services, and two technicians arrived at the apartment. In evaluating Ms. [REDACTED], they asked if she was going to hurt herself or anyone else. Ms. [REDACTED] replied that she would not. Shortly after, the technicians left without bringing Ms. [REDACTED] to the hospital for further care. Officer Halis, however, continued to tell Ms. [REDACTED] that there was something wrong with her. He further told her that, if he received another complaint that she was harassing her mother or Mr. [REDACTED], he would arrest her and take her to the hospital.

The statements made by Officer Halis to Ms. [REDACTED] were offensive and discourteous and served no legitimate law enforcement purpose. Specifically, they were unnecessary to the law enforcement functions of diffusing the situation, assuring the civilians' safety, or assessing whether there was cause for further law enforcement action.



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Officer Halis was served with Charges and Specifications for, among other things, the use of offensive language regarding a civilian's actual or perceived disability. NYPD disciplinary guidelines indicate that for offensive language, the mitigated penalty is the forfeiture of one (1) vacation day, the presumptive penalty is the forfeiture of twenty (20) vacation days, and the aggravated penalty is termination.

The negotiated settlement deviates from NYPD disciplinary guidelines as to the charge for offensive language for the following reasons:

Officer Halis has been an officer for almost 10 years. He has no disciplinary history, and the CCRB has not substantiated any charges against him aside from those related to this incident. For these reasons, the CCRB deems it appropriate to deviate from the Matrix and recommend Training.

Respectfully submitted,

Rebecca Hausner

Rebecca Hausner, Esq.
Administrative Prosecution Unit, Prosecutor
Civilian Complaint Review Board